

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: September 17, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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101	Yanagisawa vs. Laguna Beach Company, Inc., 24-01444317	Brandon Tran of Dhillon Law Group ("Moving Attorney") moves to be relieved as counsel of record for defendant Laguna Beach Company, Inc. The motion is GRANTED. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) <i>Moving Attorney to give notice.</i>

102	Kaufman vs. Membreano, 25-01489200	Defendant, Mariela Membreano (“Defendant”), moves for an order reclassifying this action from Orange County Superior Court Unlimited Civil to Orange County Superior Court Limited Civil Jurisdiction, and that Plaintiff, Leslie Keith Kaufman (“Plaintiff”), and his attorney pay any and all reclassification fees. As a threshold matter, Plaintiff filed his opposition four days late on September 10, 2025. While a paper may not be rejected for filing on the ground that it was untimely submitted for filing, the court, in its discretion, may refuse to consider a late filed paper. (California Rules of Court, rule 3.1300(d).) Given that Defendant has addressed the substance of the opposition in the reply, the Court considers the late-filed opposition. Defendant contends that transfer of this case to Limited Jurisdiction will promote the ends of justice in that this action will involve the determination of questions not within the scope of unlimited jurisdiction. Plaintiff contends the motion should be denied as it was brought too late, just 32 days before trial, and that Defendant fails to satisfy the conditions set forth in Code of Civil Procedure section 403.040(b), by failing to showing good cause for not seeking reclassification earlier, and failing to meet the high burden of reclassifying a case from unlimited to limited jurisdiction. This motion is made pursuant to the Code of Civil Procedure, Sections 396 and 397, as well as 403.040 et seq. Pursuant to Code of Civil Procedure section 403.040(a), a defendant may file a motion to reclassify an action within the time allowed to file a responsive pleading. The statute states, in pertinent part, as follows: “(b) If a party files a motion for reclassification after the time for that party to amend that party's initial pleading or to respond to a complaint, cross-complaint, or other initial pleading, the court shall grant the motion and enter an order for reclassification only if both of the following conditions are satisfied: “(1) The case is incorrectly classified. “(2) The moving party shows good cause for not seeking reclassification earlier.”
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		(Code Civ. Proc. § 403.040(b).) Here, Defendant filed her Answer to the Complaint on August 14, 2025. (ROA 9.) Plaintiff's initial ex parte application for reclassification was filed on August 19, 2026, and the instant motion for reclassification was filed on August 21, 2026. As such, Defendant filed the instant motion for reclassification over a year after the Defendant's Answer was filed. While Defendant argues that the case is incorrectly classified, Defendant does not show good cause for not seeking reclassification earlier, and sets forth no evidence showing when Plaintiff's discovery responses upon which Defendant relies, were served. In reply, Defendant submits an additional declaration from counsel which generally provides that it was determined that the case was one of limited jurisdiction "[t]hrough written discovery and deposition," that the written discovery was needed to evaluate the damages and the deposition was needed to confirm the damages and reevaluate said damages, and that no other supporting documentation has been submitted to support any further damages. (Reply Declaration of Christopher Lyon, ¶¶ 3-4.) Nonetheless, Defendant still fails to provide any explanation for why Defendant did not seek reclassification earlier. As such, Defendant fails to show good cause for not seeking reclassification earlier as required by Code of Civil Procedure section 403.040(b)(2). The motion is therefore DENIED. <i>Plaintiff to give notice.</i>
104	HNHPC, Inc. vs. California Department of Tax and Fee Administration, 23-01369643	Petitioner HNHPC, Inc. ("Petitioner") moves for reconsideration and denial of the Court's October 31, 2025 order granting respondents California Office of Administrative Law and California Department of Tax and Fee Administration's ("Respondents") Motions to Quash. Alternatively, Petitioner seeks clarification as to what the parties can and cannot do or submit under the October 2025 order. Code of Civil Procedure section 1008(a) provides, in relevant part: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any

party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. Under section 1008(a), Petitioner's Motion for Reconsideration of the October 2025 order is untimely.

In the moving papers, Petitioner argues the Court should exercise its inherent power to reconsider the order because that order is based on the false premise that there was an official, certifiable administrative record that is sufficiently comprehensive to allow a determination of the issues raised in this action without resorting to extra-record evidence. Petitioner contends that Respondents knew the Court's presumption was inaccurate but did not correct it and, based on Respondents' counsel's recent representations that Respondents intend to proceed through declarations and requests for judicial notice, Respondents have now effectively admitted that an adequate record does not exist and they will be required to submit extra-record evidence to defend the case at trial.

However, in its reply, Petitioner asserts that it has since learned that a certified administrative record does exist and Respondents were concealing that record because it is woefully deficient. The representations in the reply that a certified administrative record exists thwarts the entire premise of the moving papers that reconsideration is warranted because the October 2025 order was based on a false presumption that an official administrative record exists.

Petitioner pivots in its reply to argue Respondents intend to rely on a selective collection of incomplete materials rather than the actual administrative record and to prevent this, the Court should either limit its review to only the certified record or reconsider and reverse its prior order and open up full discovery to allow the parties to submit any documents and testimony they believe will assist the Court in making its determination. The Court's October 2025 order granted Respondents' Motions to Quash the notices of deposition served by Petitioner on the ground that the challenged actions are quasi-legislative and extra-record evidence is neither admissible nor discoverable.

		The Court declines to consider any argument in favor of reconsideration of its finding that the challenged actions are quasi-legislative and extra-record evidence is not admissible. Any issues regarding the certified administrative record and what should be included therein may be addressed by way of Petitioner's Motion to Establish the Proper Scope and Content of the Administrative Record or, In the Alternative, to Augment the Record. In light of the above, the Motion for Reconsideration is DENIED. <i>Opposing party to give notice.</i>
105	Rutner vs. OneSmile Intermediate, LLC, 26-01555258	Respondent OneSmile Intermediate, LLC ("Respondent") demurs to the Petition for Writ of Mandate filed by petitioner Robert D. Rutner ("Petitioner"). First, Respondent argues the Petition is time-barred because it seeks to challenge a decision made by Respondent on October 5, 2018. This is a mischaracterization of the Petition. Petitioner seeks to compel Respondent to permit the inspection and copying of its books and records. The Petition alleges that Petitioner, as a member of Respondent, made multiple demands beginning in the spring of 2025, all of which were denied. While the Petition alleges that Respondent made an October 5, 2018 repurchase attempt, the Petition itself arises out of Respondent's refusal to provide access to records rather than any decision made on October 5, 2018. Thus, Respondent's statute of limitations argument fails. Next, Respondent argues Petitioner has no standing to seek access to the books and records because he is not a member of the limited liability company, as demonstrated by the exhibits to the Petition. Under the Contribution and Exchange Agreement attached to the Petition as Exhibit A, Respondent had the right to purchase units held by Petitioner under certain circumstances, including cause. Exhibit B to the Petition is an October 5, 2018 letter to Petitioner which states that Respondent is exercising its option to purchase for cause. Enclosed with the letter was a check for an aggregate purchase price of \$318,148.00. While these exhibits show

that Respondent attempted to exercise a contractual repurchase right, Petitioner alleges that he did not accept the check sent by Respondent and the attempted repurchase was never consummated. Petitioner's allegations and the attached exhibits are not inherently contradictory and the allegations in the Petition must be accepted as true on a demurrer. Thus, Respondent's standing argument fails at this stage.

Lastly, Respondent argues Petitioner has not shown any irreparable harm will be suffered of a writ is not granted, that Respondent has any clear and present ministerial duty, or that Petitioner has a clear and present beneficial right to performance of any duty.

Petitioner alleges that his demands for records were made to safeguard his interests as a member of Respondent and ensure the fair and responsible management of the company and he must be provided with the information to analyze Respondent's financial transactions and investigate potential conflicts of interest or breaches of fiduciary duty.

Petitioner alleges that he has made proper and lawful demands for the inspection and copying of Respondent's records pursuant to his rights as a member. Respondent has a duty under Corporations Code section 17704.10 to deliver the requested records for inspection and copying. As Petitioner points out, monetary damages for Respondent's failure to comply with his demands would not provide an adequate remedy at law as it would not grant him the access to the records to which he is allegedly entitled. Further, section 17704.10(f) grants the Court authority to issue a writ order along with any other remedies. (*Perry v. Stuart* (2025) 111 Cal.App.5th 472, 499.) The Court finds that Petitioner's allegations are sufficient to support his Petition for writ of mandate.

In light of the above, the Demurrer is **OVERRULED**. Respondent to file an answer to the Petition within 20 days.

The Case Management Conference is continued to December 3, 2026 at 1:30 p.m.

Petitioner to give notice.

107	KMJ Corbin & Company LLP vs. Blithe, 24-01412778	Defendant, Richard Blithe (“Defendant” or “Blithe”), moves for judgment on the pleadings as to the second cause of action for breach of contract in the Verified Complaint of Plaintiff KMJ Corbin & Company LLP (“Plaintiff” or “KMJ”). Defendant contends that the second cause of action is based on alleged noncompete clauses that are unenforceable under Business & Professions Code sections 16600 and 16601, such that the motion must be granted, without leave to amend. KMJ contends that the motion is improper as it attacks only the non-competition and non-solicitation covenants and not the other breaches of contractual duties such that it impermissibly attacks a portion of a cause of action; that Section 16601 applies on the face of the pleadings as this case involves a sale of an entire business and its goodwill, not a partial sale, and not an employment noncompete imposed as a condition of hire; that this is not the "employment context" that Section 16600(b)(1) addresses; that the controlling authority is <i>Alliant Ins. Services, Inc. v. Gaddy</i> (2008) 159 Cal.App.4th 1292, which forecloses Defendant’s argument that the covenant cannot reach post-sale and employment-derived clients; that the motion’s duration and geography arguments raise fact questions that cannot be resolved on the pleadings; and that Section 16601 contains no durational limit. Lastly, KMJ contends that even accepting Defendant’s premise that categories (ii) and (iii) are overbroad, judgment on the pleadings would still be improper because category (i), the Client List Blithe actually sold, is within Section 16601’s core, and that the parties expressly contracted for reformation and severance, such that, at minimum, the covenant is enforceable as to the Client List Blithe sold, and the second cause of action states a claim. Defendant moves for judgment on the pleadings pursuant to Code of Civil Procedure sections 438 and 439, and common law. A statutory motion for judgment on the pleadings may be made at any time except not within 30 days before trial, unless the court otherwise permits. (Code Civ. Proc. § 438(e).) However, a nonstatutory motion for judgment on the pleadings may be brought at any time. (<i>Stoops v. Abbassi</i> (2002) 100 Cal. App. 4th 644, 650.)
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A motion for judgment on the pleadings that is brought by a defendant may only be made either on the ground that the court has no jurisdiction of the subject of the cause of action alleged in the complaint, or that the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc. § 438(c)(1)(B)(i)-(ii).) A motion for judgment on the pleadings may be made either as to the entire complaint or as to any of the causes of action stated therein. (Code Civ. Proc. § 438(c)(2)(A).)

A motion for judgment on the pleadings may be made, and granted, on the same grounds as a general demurrer. (Code Civ. Proc. § 438(c)(1)(B)(ii); *Stoops v. Abbassi* (2002) 100 Cal. App. 4th 644, 650.) “[A] motion for judgment on the pleadings is appropriate where the operative complaint does not state facts sufficient to constitute a cause of action against the named defendant.” (*Barajas v. Sativa L.A. Cnty. Water Dist.* (2023) 91 Cal.App.5th 1213, 1224, quotation marks and alteration omitted, review denied (Aug. 9, 2023).) “A motion sought on this basis is equivalent to a demurrer such that [the court’s] task is to examine the operative complaint’s allegations and any judicially noticed documents in order to assess whether the pled cause of action is legally viable.” (*Id.*, citation omitted.)

The grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (Code Civ. Proc. § 438(d); *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999 (“Cloud”).) “A motion for judgment on the pleadings is equivalent to a demurrer and is governed by the same standard of review. All material facts which were properly pleaded are deemed true, but not contentions, deductions, or conclusions of fact or law.” (*Mack v. State Bar of California* (2001) 92 Cal.App.4th 957, 961.) Factual allegations are accepted as true and are given a liberal construction. (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516.) Extrinsic evidence is not considered on a motion for judgment on the pleadings. (*Cloud, supra*, 67 Cal.App.4th at p. 999.)

“A motion for judgment on the pleadings, like a demurrer, cannot be granted as to only a portion of a cause of action. (*Spencer v. City of Palos Verdes Estates* (2023) 88

Cal.App.5th 849, 861-862, 304 Cal.Rptr.3d 880; *Fire Ins. Exchange v. Superior Court* (2004) 116 Cal.App.4th 446, 452, 10 Cal.Rptr.3d 617 [a motion for judgment on the pleadings, like a general demurrer, “does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the demurrer will be overruled [or motion for judgment on the pleadings denied]”]; see *Southern California Pizza Co., LLC v. Certain Underwriters at Llyod's, London* (2019) 40 Cal.App.5th 140, 154, 252 Cal.Rptr.3d 635 [“ [a] demurrer must dispose of an entire cause of action to be sustained’ ”].)” (*Santa Clarita Organization etc. v. County of Los Angeles* (2024) 105 Cal.App.5th 1143, 1165 [reversing judgment after finding trial court erred in granting motion for judgment on the pleadings where a portion of the CEQA cause of action was not barred under section 66499.37].)

Here, Plaintiff correctly asserts that Defendant’s motion for judgment on the pleadings does not resolve the entire second cause of action for breach of contract and seeks to resolve only a portion of the breach of contract claim as to the non-competition and non-solicitation covenants in the Agreement for the Purchase and Sale of Accounting Practice Assets and Employment Agreement, attached as Exhibits A and C to the Verified Complaint.

The second cause of action alleges breach of the non-competition/non-solicitation covenants as well as breach of other contractual duties.

The second cause of action alleges, in part:
 “BLITHE also entered into a valid and legally enforceable Employment Agreement with KMJ, attached hereto as Exhibit C. The Employment Agreement stated, and BLITHE agreed, that he, by entering into this agreement, “shall devote his full working hours and best efforts to the business of the firm,” and “shall not engage in providing any competing accounting services individually[.]” Further, the Employment Agreement stipulates that the “Firm’s clients are material, important and confidential trade secrets of the Firm’s practice,” and that BLITHE agrees to not “use or disclose the list of the Firm’s clients, or any part thereof, to any person, firm, corporation, association or other entity for any reason or purpose.””

(Verified Complaint, ¶ 33.)

		The second cause of action additionally alleges, as follows: “BLITHE's acts described herein breach both the Non-Compete Covenant contained in the Purchase Agreement and the Employment Agreement, including but not limited to: “a. Taking steps to undermine, deter, and/or ultimately sabotage the potential acquisition of KMJ to a third party; “b. Neglecting his duties while employed by KMJ to instead focus on business opportunities he stole from KMJ for his own personal gain and benefit, costing KMJ money and client relationships; “c. Taking confidential and proprietary information of KMJ, including its Client Lists that do not constitute trade secrets and using such information in unfair competition against KMJ; and “d. Denigrating the reputation of KMJ to its clients through email, phone calls, and in person meetings.” (Verified Complaint, ¶ 36.) Defendant's motion acknowledges these allegations, but does not address them in the motion and show that they are entitled to judgment on the pleadings. (Motion, 2:20-25.) The allegations above allege a claim for breach of contract based on provisions in the Employment Agreement other than the non-solicitation/non-competition covenants. By failing to address these other alleged breaches, Defendant fails to establish judgment on the pleadings as to the entire second cause of action. Defendant's motion for judgment on the pleadings as to the second cause of action is DENIED. Defendant's request for judicial notice of Plaintiff's Verified Complaint is GRANTED. <i>Plaintiff to give notice.</i>
108	Dodson vs. Ford Motor Company, 23-01340987	Plaintiff HUGH DODSON will, and hereby does, move for an order to strike Defendants' memorandum of costs. Initially, the “prevailing party” is entitled as a matter of right to recover costs of suit in any action or proceeding. [CCP § 1032(b); <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 606.]

To that end, “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” [CRC, Rule 3.1700(a)(1).]

Here, on 3/2/2026 after taking the matter under submission, this Court granted Defendant Ford Motor Company and Santa Monica Ford Lincoln’s Motion for Summary Judgment. As such, Defendants Ford Motor Company and Santa Monica Ford Lincoln are the prevailing parties herein.

On 3/23/2026 Judgment was entered in favor of Defendant Ford Motor Company. Defendant Ford Motor Company was dismissed. (ROA 124)

For reasons unknown, the 3/23/2026 Judgment was not entered as to Defendant Santa Monica Ford Lincoln. The Motion for Summary Judgment was granted, which included the 5th cause of action for Negligent Repair.

Curiously, on 3/25/2026 Defendants filed a Statement of Compliance (ROA 131) stating, “On March 23, 2026, the Court entered judgement in favor of Defendant Ford Motor Company, thereby dismissing Ford from the action. The only remaining cause of action is the Negligent Repair Cause of action.”

Thereafter, on 4/7/2026 Defendants filed a Memo of Costs in the amount of \$3,996.61 (ROA 140). The costs were incurred by both Defendants.

Notably, in the case of *Boonyarit v. Payless Shoesource, Inc.* (2006) 145 Cal.App.4th 1188, 1192-1193, a costs award was reversed where no order or judgment of dismissal had been entered, and defendant failed to secure entry by filing a proposed judgment with a memorandum of costs and did not ensure that the court executed the judgment with the award.

In this instance, Judgment has been entered as to Defendant Ford Motor Company only. No Judgment or Dismissal has been entered as to Defendant Santa Monica Ford Lincoln. However, it appears both Defendants filed a joint Memorandum of Costs, which seeks costs incurred by both Defendants. Therefore, the Memorandum of Costs, as to Defendant Santa Monica Ford Lincoln appears to be premature.

Notwithstanding the above, on April 21, 2026, Plaintiff filed this Motion challenging Items 1, 4, 14, and 15 of the Memo of Costs. (ROA 148)

A memo of costs is facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. [*Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776; *Bender v. County of Los Angeles* (2013) 217 Cal.App.4th 968, 989; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266—mere statements in points and authorities and declaration of counsel insufficient to rebut prima facie showing]

On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. [*Ladas v. California State Auto. Ass'n, supra*, 19 Cal.App.4th at 774-776]

Item 1. Filing and motion fees

The memo of costs seeks \$1490 for filing and motion fees. Pursuant to CCP§1033.5(c)(1) filing and motion costs are allowable costs if incurred by the prevailing party. Plaintiff argues, with no support, that these costs are excessive. However, it is clear from the work-sheet attached to the memo of costs that the costs are for two Defendants' Answers, two motions, and a Motion for Summary Judgment/Adjudication. The costs are reasonable and supported.

Motion is DENIED as to Item 1.

Item 4: Deposition Costs

The Memo of Costs seeks \$1995.90 in deposition costs.

		Transcripts and video recordings of “necessary” depositions, fees of certified or registered interpreters for the depositions of parties or witnesses who do not proficiently understand or speak the English language, plus travel expenses to attend depositions, are allowable costs. [CCP § 1033.5(a)(3).] Plaintiff argues the deposition of Plaintiff Hugh Dodson only occurred from 10 am until 12:19 p.m., (Baker Decl. ¶ 6) and \$1,995.90 for the deposition is exorbitant. However, Plaintiff provides no indication as to how much transcripts and video recordings for this clearly necessary deposition of Plaintiff should have cost or would normally cost. Unhelpfully, Defendant simply argues, “Plaintiff’s firm should similarly be familiar with deposition costs as they have claimed the same amounts in deposition costs in several other cases with Ford’s Counsel.” (Opp. page 4-5.) Motion is DENIED as to Item 4. <i>Item 14: Fees for Electronic Filing or Service</i> The Memo of Costs seeks \$157.19 for fees for electronic filing or service. These costs are allowed pursuant to CCP§1033.5(a)(14). Plaintiff argues that the filing fees were sought elsewhere in the memo and that they are in excess of the Orange County Fee Schedule. Defendant fails to address these fees whatsoever in the Opposition. However, in the attachment to the Memo of Costs work-sheet, it is clear these are costs associated with electronically filing of six items at various costs. Clearly these are e-filing costs in addition to the standard court filing costs. Motion is DENIED as to Item 14. <i>Item 15: Other</i> Defendants request \$353.52 for Item, 15: Other.
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		Plaintiff argues Defendant provides no receipts of invoices to indicate that this is the actual amount charged and/or spent. Defendant argues these were presented under the “Other” costs category because they are the “filing Fees” that are charged from First Legal, a legal service used to aid in the filing and service of documents necessary to litigate the case. In reviewing the attachment of the work-sheet, only filing fees for the Answer (\$37.75) and a Ex Pate Minute order (\$7.50) are identified. It is unclear what the two other invoices connected for \$195.22 and \$113.05, respectively, are for. As such, the Motion is GRANTED in the amount of \$308.27 as to Item 15. <i>Defendant Ford Motor Company to give notice.</i>
109	Rask vs. County of Orange, 25-01495933	<u>Motion to Stay Proceedings (ROA 62)</u> Defendants County of Orange (the “County”); Sheriff Don Barnes (“Sheriff Barnes”); Deputy N. Leland, Deputy Damasco, Deputy Belfield, Deputy E. Rodriguez, Deputy L. Vasquez, Deputy S. Vasquez, Sergeant Byrd, Deputy D. France, Deputy Z. Wainwright, Deputy G. Scannell, and Deputy L. Rhodes (collectively, “Deputy Defendants”), and Sergeant C. Strunk (“Officer Strunk”) seek an order staying this action during the pendency of criminal proceedings against Plaintiff Wayne Christopher Rask (“Plaintiff”). Government Code § 945.3 provides in part: “No person charged by indictment, information, complaint, or other accusatory pleading charging a criminal offense may bring a civil action for money or damages against a peace officer or the public entity employing a peace officer based upon conduct of the peace officer relating to the offense for which the accused is charged, including an act or omission in investigating or reporting the offense or arresting or detaining the accused, while the charges against the accused are pending before a superior court.” (Gov. Code, § 945.3.) “The purpose of the statute was 'to eliminate the use of civil damage complaints as plea bargaining levers' “ and

possibly 'to prevent use of civil false arrest suits as a device to inquire into prosecutorial materials and investigative information while the criminal charge is pending.' [Citation.]" (*Damjanovic v. Ambrose* (1992) 3 Cal.App.4th 503, 508 (*citing* *McMartin v. County of Los Angeles* (1988) 202 Cal.App.3d 848, 855).)

Plaintiff does not dispute that on June 17, 2024, in Orange County Superior Court Case No. 24HF1195, Plaintiff was charged with one count of Penal Code section 69(a) (resisting an executive officer), and misdemeanor counts under Penal Code sections 647(f) (public intoxication) and 243(b) (battery on a peace officer). (Clark Decl. ¶ 2, Exh. A; Oppn at 2:3-6.) It appears that this criminal action is still pending.

This action involves allegations of "police misconduct involving excessive force, intentional falsification of police reports, and severe injuries inflicted upon PLAINTIFF by deputies of the Aliso Viejo Sheriff's Department." (FAC ¶ 1.) The parties do not dispute that the excessive force incident alleged in the FAC, which occurred on June 15, 2024, is the same incident from which the criminal charges arise.

Plaintiff opposes the motion. First, Plaintiff contends that Section 945.3 does not apply to the City of Aliso Viejo because it is not an employer of the deputies. Rather, the City contracts with the County for law-enforcement services. The Court notes that the City is not a moving party on this motion, nor did it file an opposition.

Nonetheless, the FAC alleges that "at all relevant times, Deputy Defendants, Officer Strunk and Sheriff Barnes were duly authorized employees and agents of the County and/or the City of Aliso Viejo." (FAC ¶ 12.) Further, the case Plaintiff cites in support of the proposition that section 945.3 does not extend to contracting public entities, but only to the public entity employing the peace officer, did not address that issue. (See *Damjanovic v. Ambrose* (1992) 3 Cal.App.4th 503.) The issue in *Damjanovic* was whether Section 945.3 extends the time for serving civilian defendants with summons where a case involves both peace officers and civilian defendants. The court made no distinction between contracting public entities and "employer" public entities.

Plaintiff next contends that not all of the allegations of the FAC is “based upon conduct of the peace officer relating to the offense for which the accused is charged.” Plaintiff points out that some of the conduct alleged in the FAC occurred after Plaintiff had already been pinned and immobilized by the deputies, including failure to render medical aid and falsification of post-incident use-of-force reports. (Oppn at 3:6-19.)

Plaintiff’s narrow reading of the statute is unavailing. On its face, section 945.3 is broader than Plaintiff’s cherry-picked excerpt discloses. The statute prohibits a civil action “based upon conduct of the peace officer relating to the offense for which the accused is charged, including an act or omission in investigating or reporting the offense or arresting or detaining the accused. (Gov. Code, § 945.3.)

Thus, the failure to render medical aid while Plaintiff was being detained, and alleged falsification of post-incident reports all seem to fall within the scope of the statute. To the extent that some of the alleged conduct falls outside the scope of the statute, the Court has inherent authority to control the processes before it by imposing a stay. (See Code Civ. Proc., § 128, subd. (a) [“Every court shall have the power . . . (3) [t]o provide for the orderly conduct of proceedings before it . . . [and] (8) [t]o amend and control its process and orders so as to make them conform to law and justice.”].)

Here, the Court finds that a stay of the entire action is warranted in order to further the aims of Section 945.3, as well as in the interests of justice and to promote judicial efficiency.

Accordingly, this action is STAYED during the pendency of Orange County Superior Court Case No. 24HF1195.

A status conference is set for March 25, 2027 at 1:30 p.m. in Department W15.

Demurrer and Motion to Strike Portions of FAC (ROAs 60, 62)

In light of the stay, the Demurrer and Motion to Strike are OFF CALENDAR. The hearings will be rescheduled once the stay is lifted.

		The Case Management Conference is vacated. <i>Moving Defendants to give notice.</i>
111	Orange County Power Authority vs. County of Orange, 26-01542269	Plaintiff Orange County Power Authority ("Plaintiff") moves to transfer this action to a neutral county (preferably San Diego County) pursuant to Code of Civil Procedure section 394. Defendant County of Orange opposes the motion and argues the case should remain in Orange County. Alternatively, Defendant proposes the case be transferred to Los Angeles County or Riverside County. The Motion is GRANTED and the Court ORDERS the case TRANSFERRED to San Diego County. Code of Civil Procedure section 394 states: "An action or proceeding against a county . . . may be tried in the county, or city and county, or the county in which the city or local agency is situated, unless the action or proceeding is brought by a county, or city and county, a city, or local agency, in which case it may be tried in any county, or city and county, not a party thereto and in which the city or local agency is not situated. . . ." Code Civ. Proc., § 394, subd. (a).) "[S]ection 394 is a specific statute dealing with the venue of actions by or against counties and other public entities." (<i>City of Alameda v. Superior Court</i> (1974) 42 Cal.App.3d 312, 317.) (<i>Ibid.</i>) "The evident purpose is to guard against local prejudices which sometimes exist in favor of litigants within a county as against those from without and to secure to both parties to a suit a trial upon neutral ground." (<i>County of San Bernardino v. Superior Court</i> (1994) 30 Cal.App.4th 378, 386; <i>see also City of Alameda v. Superior Court</i> (1974) 42 Cal.App.3d 312, 317 ["It is designed to obviate the appearance of prejudice as well as actual prejudice or bias."].) <i>County of San Bernardino v. Superior Court</i> (1994) 30 Cal.App.4th 378, 386 provides the following example: "For example, in <i>Garrett v. Superior Court</i> (1947) 11 Cal.3d 245 [113 Cal.Rptr. 152, 520 P.2d 968], a

		nonresident defendant was allowed a change of venue under Clause Two in a condemnation action brought by Riverside County Flood Control and Water Conservation District in Riverside County, because "... it is still possible that a Riverside County juror will also be a District taxpayer with an interest in keeping the condemnation award unreasonably low. This situation would be precisely one which the Legislature must have intended to avoid by enacting section 394." (Id., at p. 248.) And as the court pointed out in City of Alameda, supra, there is no need for a party to demonstrate an actual danger of prejudice; the statute "is designed to obviate the appearance of prejudice as well as actual prejudice or bias." (42 Cal.App.3d at p. 317.)" (<i>Ibid.</i>) This a case brought by a plaintiff local agency against a defendant county and is currently being tried in the county in which both the plaintiff and defendant are situated. Based on the authority above, the motion is GRANTED. The Court ORDERS the case TRANSFERRED to San Diego County. The Case Management Conference is vacated. <i>Plaintiff to give notice.</i>
112	Mao vs. Mao, 25-01458525	The unopposed motion of attorney Jewels J. Jin of Jin Legal APLC to be relieved as counsel for Defendant Jamie Mao is GRANTED. Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client. At the hearing, the parties shall be prepared to discuss whether the Court Trial scheduled for 10/08/2026 should be briefly continued or if the parties are prepared to proceed as scheduled. <i>Moving attorney to give notice.</i>

113	Lancab, Inc. vs. Fuller, 25-01481178	Plaintiff, Lancab, Inc. ("Plaintiff"), moves for an order striking the memorandum of costs in its entirety. Plaintiff contends that Memorandum of Costs filed by Defendants, Keven Fuller and Defendant TechPro Services US (collectively, "Defendants") should be stricken as they were not served within the mandatory time limits of California Rules of Court, rule 3.1700(a)(1). No opposition has been filed. <i>Timeliness of Motion to Strike</i> Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum, and is extended as provided in Code of Civil Procedure section 1013 (five days for mail), and in Code of Civil Procedure section 1010.6(a)(3) (two court days for electronic service). (California Rules of Court, Rule 3.1700(b)(1).) Here, Defendants served their respective Memorandum of Costs on Plaintiff on February 19, 2026, by email. (Declaration of Travis F. Chance, ¶ 9, Ex. 2.) The deadline to file the instant motion to strike was therefore March 10, 2026 (15 days + 2 court days). As this instant motion was filed and served on March 9, 2026, it was timely served and filed. <i>Timeliness of Memorandum of Costs</i> "A party's right to recover costs is governed entirely by statute. [Citation.]" (<i>Boonyarit v. Payless Shoesource, Inc.</i> (2006) 145 Cal.App.4th 1188, 1192.) "To obtain costs, a party must comply with the applicable rules of court. [Citation.]" (<i>Ibid.</i>) "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc. § 1032(b).) Prejudgment costs must be claimed and contested in accordance with the rules adopted by the Judicial Council. (Code Civ. Proc., § 1034(a); see also CJER, Cal. Judges Benchbook Civ. Proc. Trial § 16.11.) "A party that requests dismissal of an action must serve on all parties and file notice of entry of the dismissal." (California Rules of Court, rule 3.1390.)
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“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” (California Rules of Court, rule 3.1700(a)(1).)

“[I]f a claimant fails to present a cost bill, a waiver of the right to costs results. The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory. [Citation.]” (*Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 929; see also *Kaufman v. Diskeeper Corp.* (2014) 229 Cal.App.4th 1, 6, fn. 2 [“We agree with the trial court that Diskeeper was required to file a memorandum of costs in order to recover the other costs and expenses it sought, and that Diskeeper’s failure to do so worked a forfeiture regarding them”].)

“The party claiming costs and the party contesting costs may agree to extend the time for serving and filing the cost memorandum and a motion to strike or tax costs. This agreement must be confirmed in writing, specify the extended date for service, and be filed with the clerk. In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days.” (California Rules of Court, rule 3.1700(b)(3).) The trial court has discretionary power to grant relief under Code of Civil Procedure section 473(b) upon a proper showing of mistake, inadvertence, surprise or excusable neglect. (*Jones v. John Crane, Inc.* (2005) 132 Cal.App.4th 990, 1012; *Russell v. Trans Pacific Group* (1993) 19 Cal.App.4th 1717, 1728-1729.)

Here, on January 16, 2026, Plaintiff filed a request for dismissal, without prejudice, as to the Complaint and the entire action of all parties and all causes of action, which was entered that same day. (Declaration of Travel F. Chance, ¶¶ 6-7; ROA 153.) On January 23, 2026, Plaintiff served a notice of entry of dismissal by electronic service. (Id., ¶ 8, Ex. 1; ROA 158.)

		Therefore, Defendants were required to file and serve any memorandum of costs no later than February 11, 2026 (15 days + 2 court days for electronic service). However, Defendants did not serve their respective Memorandum of Costs until February 19, 2026. (Chance Decl., ¶ 9, Ex. 2.) And, Defendants did not file their respective Memorandum of Costs until February 18, 2026. (ROA 160, 162.) Defendants have not filed an opposition or presented any basis or justification to extend the time for serving and file the Memorandum of Costs. (Jones v. John Crane, Inc. (2005) 132 Cal.App.4th 990, 1012 [“While the court had discretion to excuse the untimeliness, it did not abuse its discretion in failing to do so in light of plaintiffs’ failure to offer an ‘explanation ... for this neglect’”].) Under these circumstances, the Court GRANTS Plaintiff’s motion to strike the Memorandum of Costs filed by Defendants. <i>Plaintiff to give notice.</i>
114	Nguyen vs. Roth Staffing Companies, L.P., 20-01143300	Defendants Roth Staffing Companies, L.P. dba Ultimate Staffing Services, Roth Companies, Inc. (“Roth Defendants”), hereby file this Petition to Confirm the Arbitration Award (“Petition”) issued by the Honorable Rex Heeseman (Ret.) on March 14, 2025. The Roth Defendants pray as follows: 1. That the Court confirm the Arbitration Award issued by the Honorable Rex Heeseman (Ret.) on March 14, 2025; and 2. That the Court direct the Clerk to enter judgment in conformity with the Arbitration Award and dismiss the action as to the Roth Defendants only, with prejudice. Initially, the Roth Defendants cite to 9 U.S.C § 13 as the enabling authority for the requested relief. However, the CAA applies to this Petition, and not the FAA. [... “the United States Supreme Court does not read the FAA’s procedural provisions to apply to state court proceedings.” <i>Cable Connection, Inc. v. DIRECTV, Inc.</i> (2008) 44 Cal.4th 1334, 1351.] To that end, Code Civ. Proc., § 1286 provides, “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with

this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.”

Where a petition to confirm an arbitration award is procedurally proper, dismissal of that petition is not sought, and there is no timely filing seeking to vacate or correct the arbitration award, the trial court is obligated to confirm the arbitration award. [*Darby v. Sisyphian, LLC* (2023) 87 Cal.App.5th 1100.]

The arbitrator must file the award within 10 days after conclusion of the hearing. An additional 20 days to file may be granted in unusually lengthy or complex cases, upon application by the arbitrator. [CRC 3.825(b)(1)]. Here, the award was apparently made 3/14/2025, but only filed by Petitioner in connection with this Petition on 2/27/2026.

Additionally, the arbitrator must serve each party with a copy of the award and file the award together with proof of service on the parties within the time limits stated above. [CRC 3.825(b)(1)] Here, there is no proof of service attached to the actual arbitration award which was submitted with this Petition. (Zimmerman Decl., Ex.B.)

Notably, an arbitration award filed without proof of service on the parties (or proof of actual service) is ineffective as a matter of law. Thus, no judgment can be entered on the award; and the 60-day period for requesting a trial de novo does not begin to run until actual service is made. [*Oats v. Oats* (1983) 148 CA3d 416, 421; *Domingo v. Los Angeles County Metropolitan Transp. Auth.* (1999) 74 CA4th 550, 554—arbitration award mailed to wrong address]

Notwithstanding the irregularities in procedure above, all parties should have notice of the arbitrator’s “award” and this Petition as of 2/26/2027 when the Notice of Petition, Petition, and Declaration in Support of Petition (with the Ruling Granting Motion for Summary Judgment attached as Ex. B) was served.

As there is no opposition or objection (7 months later), the Motion is GRANTED.

The Case Management Conference is continued to October 15, 2026 at 1:30 p.m.

		<i>Moving Party to give notice.</i>
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